



U.S. Department
of Transportation

Research and
Special Programs
Administration

APR 21 1994

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11245

EXPIRATION DATE: May 21, 1994

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: IMC Fertilizer, Inc., Mundelein, Illinois
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation of a DOT Specification 111A100W1 tank car, containing a residue of a class 8 material, which does not fully comply with all DOT requirements and provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.29(c)(2); 173.31(a).
5. BASIS. This emergency exemption is based on IMC Fertilizer, Incorporated's application of April 15, 1994, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class (Written Class) class number	Identification number	Packing Group
Phosphoric Acid	8	UN 1805	III

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packaging prescribed is a DOT Specification 111A100W1 tank car, UTLX 14916, with a failed liner and shell. The point of failure has been patched by welding to prevent release of product.
 - b. TESTING - Tank car UTLX 14916 must be reinspected and retested prior to the tank car being refilled.
 - c. MARKING - Tank car UTLX 14916 must be marked DOT-E 11245 in four inch letters and numerals on a contrasting background above the DOT specification number.

APR 21 1994

Continuation of DOT-E 11245

Page 2

d. MOVEMENT CONTROLS - Tank car UTLX 14916 must be moved as the last car of the train.

8. SPECIAL PROVISIONS.

a. Shipment of tank car UTLX 14916 is authorized from CSX Transportation, Ocala, Florida, to IMC Fertilizer in South Pierce, Florida, a distance of approximately 100 miles and once cleaned and purged, from South Pierce, Florida, to Fitzgerald Railcar Services in Fitzgerald, Georgia, a distance of approximately 300 miles utilizing the most direct route via CSX Transportation.

b. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS:

a. The Federal Railroad Administration is to be notified if any unusual incident, such as derailment or exterior tank car damage, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

- All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- Registration required by 49 CFR 107.601 et seq., when applicable.

APR 21 1994

Continuation of DOT-E 11245

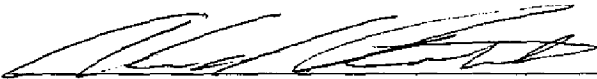
Page 3

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued at Washington, D.C.:

APR 21 1994



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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